

OFFICE OF THE SECRETARY

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May 30, 2018

The Honorable Timothy P. Roberts
Judge of the Superior Court
County of Monterey
240 Church Street
Salinas, CA 93901

Re: Martinez, Johnny Angel
CDC No: F28640
Case No: SS102246A
Date of Sentence: December 1, 2011

Dear Honorable Timothy P. Roberts:

The purpose of this letter is to provide the court with authority to resentence Johnny Angel Martinez pursuant to Penal Code (PC) Section 1170, subdivision (d)(1). Section 1170, subdivision (d) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

Inmate Martinez was convicted of PC Section 187(a) 2nd degree murder in 2011, and sentenced to a term of 15-years-to life. This offense occurred on May 29, 2000, and remained unsolved until Mr. Martinez turned himself in to the Salinas Police Department on August 10, 2010, and confessed to his part in the crime.

Enclosed is a copy of the diagnostic study and evaluation report, pursuant to PC Section 1170, subdivision (d)(1). Having reviewed the enclosed documentation it appears that inmate's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,



SCOTT KERNAN
Secretary

Enclosures:
Diagnostic Study and Evaluation Report